Data Processing Addendum

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1. Roles and Scope

This Data Processing Addendum ("DPA") applies where Kestrel Ridge Software, Inc. ("Kestrel") processes personal data on behalf of the Customer in providing Kestrel Insight. The Customer is the controller and Kestrel is the processor of Customer personal data.

2. Processing Instructions

Kestrel processes Customer personal data only on the Customer's documented instructions, including those set out in the customer agreement and this DPA, unless required to do otherwise by applicable law.

3. Personnel

Kestrel ensures that personnel authorized to process Customer personal data are bound by written confidentiality obligations and receive appropriate data protection training.

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4. Subprocessors

Kestrel uses the following categories of subprocessors to provide Kestrel Insight:

Subprocessor	Purpose
Amazon Web Services, Inc.	Cloud hosting and storage
Third-party large language model provider	AI inference, under a no-training commitment
Customer support platform provider	Support ticketing

The current named list of subprocessors is published in the Kestrel Trust Center. Kestrel will give at least 30 days' notice before engaging a new subprocessor, and the Customer may object on reasonable data protection grounds.

5. Data Location

Customer Data is stored in the hosting region selected by the Customer, which is either the United States or the European Union. Transfers of personal data outside the European Economic Area are governed by the EU Standard Contractual Clauses.

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6. Personal Data Breach

Kestrel will notify the Customer without undue delay, and in any event within 48 hours, after becoming aware of a Personal Data Breach affecting Customer personal data. The notice will describe the nature of the breach, the likely consequences, and the measures taken.

7. Deletion and Return

During the 30 days after termination, the Customer may export its Customer Data. Within 30 days after termination, Kestrel will delete Customer Data from production systems. Backups containing Customer Data are deleted according to the backup retention schedule.

8. Audits

Kestrel will make its most recent SOC 2 Type II report available to the Customer once per year to demonstrate compliance with this DPA. On-site audits are permitted only where required by applicable law or a supervisory authority, at the Customer's expense, with at least 30 days' notice.

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